

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Monique West	Team: Squad #02	CCRB Case #: 201602246	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Thursday, 03/10/2016 12:09 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 9/10/2017	Precinct: 10
Date/Time CV Reported Thu, 03/10/2016 2:12 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 03/16/2016 10:29 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Vincent Fontana	03556	931673	010 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT William Coyle	01220	918895	010 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Vincent Fontana	Abuse: Sergeant Vincent Fontana entered and searched § 87(2)(b) in Manhattan.	A . Exonerated
B . SGT Vincent Fontana	Discourtesy: Sergeant Vincent Fontana spoke discourteously to § 87(2)(b)	B . Unfounded
C . SGT Vincent Fontana	Off. Language: Sergeant Vincent Fontana made remarks to § 87(2)(b) based upon ethnicity.	C . Unfounded
D . SGT Vincent Fontana	Abuse: Sergeant Vincent Fontana forcibly removed § 87(2)(b) to a hospital.	D . Exonerated

Case Summary

On March 10, 2016, at approximately 12:09 a.m., Sergeant Vincent Fontana of the 10th Precinct responded to § 87(2)(b) § 87(2)(b) in Manhattan where § 87(2)(b) § 87(2)(b) and § 87(2)(b) resides, in regards to a 911 call of males fighting inside of the apartment. During this interaction, Sergeant Fontana entered and searched § 87(2)(b) § 87(2)(b) in Manhattan (**allegation A**). Sergeant Fontana allegedly spoke discourteously to § 87(2)(b) and made remarks to him based upon his ethnicity (**allegations B and C**). § 87(2)(b) § 87(2)(b)'s friend, was removed from the apartment and taken to § 87(2)(b) (**allegation D**). There were no arrests made or summonses issued during this incident. § 87(2)(b) and § 87(2)(b) recorded parts of the incident. The full videos can be found in IAs 35 through 37.

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation due to the property damage allegations stemming from this incident.
- As of May 19, 2016, none of the victims have filed a Notice of Claim regarding this incident (Board Review 01).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) and § 87(2)(b) have not filed or been involved in any prior CCRB complaints (Board Review 03).
- Sergeant Fontana has been a member of the NYPD for 13 years and has had 27 prior CCRB allegations against him in 12 cases with two substantiated allegations § 87(4-b) § 87(2)(g) (see officer history).
 - In CCRB case #200507325, allegations that Sergeant Fontana stopped, questioned and searched an individual were substantiated and charges were recommended; however, Sergeant Fontana received a command discipline A from the NYPD. § 87(2)(b) § 87(4-b) § 87(2)(g)
 - § 87(4-b) § 87(2)(g) The NYPD disposition and penalty was not noted.
 - § 87(4-b) § 87(2)(g)

Potential Issues

- The AIDED identified the individual who was removed to the hospital as § 87(2)(b) § 87(2)(b). His address was noted as § 87(2)(b) § 87(2)(b) in Manhattan and his date of birth as § 87(2)(b). Searches of Clear and Lexis Nexis yielded negative results

for an individual matching this information. A Clear search located an individual with similar information: § 87(2)(b) with an address of § 87(2)(b) § 87(2)(b) in Manhattan and a date of birth of § 87(2)(b). § 87(2)(b) was contacted but denied having any knowledge of the incident or of the people involved. He alleged that someone must have taken his identification, which he recently lost, and used his information. A

§ 87(2)(b)

- On April 14, 2016, the undersigned contacted § 87(2)(b) one of the occupants of the apartment. She stated that she was at work and would call back when she got a chance. This was the second call placed to § 87(2)(b). Between April 19, 2016 and April 25, 2016, three additional calls were placed to § 87(2)(b) and voicemail messages were left during each call. Between April 25, 2016 and May 6, 2016, three letters were mailed to § 87(2)(b). As of the date of this report, § 87(2)(b) has not contacted the CCRB to provide a statement.

Findings and Recommendations

Explanation of Subject Officer Identification

- Sergeant Fontana admitted to being the supervisor on scene at the time of the entry and making the decision to enter the apartment and to remove § 87(2)(b) to the hospital. § 87(2)(g)
- § 87(2)(b) identified the officer who spoke discourteously toward him and made remarks to him based upon his ethnicity as a sergeant from the chevrons on his uniform and described him as a bald 6'0" tall white male in his mid-40s with blue eyes. § 87(2)(b) described the subject officer as a 5'8"-5'10" tall, bald and "chubby" white male in his late 30s to early 40s. § 87(2)(b) could not describe any of the officers on scene. Sergeant Fontana is a bald, § 87(2)(b) white male with blue eyes. At the time of the incident, he was § 87(2)(b) old and approximately 200 pounds. Sergeant Fontana was the only sergeant on scene at the time of this allegation. § 87(2)(g)

Allegations not pleaded

- § 87(2)(g)
- § 87(2)(g)

- § 87(2)(g)
- § 87(2)(g)
- § 87(2)(g)
 - **Abuse of Authority:** Video footage revealed that § 87(2)(b) asked for “everybody’s names and badge numbers.”



201602246_20160518_1408_DM.mp4

None of the victims or witnesses made this allegation and another video revealed that § 87(2)(b) stating that he had the officers’ badge numbers. § 87(2)(g)

Allegation A- Abuse of Authority: Sergeant Vincent Fontana entered and searched § 87(2)(b) in Manhattan.

On March 10, 2016, § 87(2)(b) provided a statement to IAB (Board Review 04). On March 23, 2016, § 87(2)(b) provided a phone statement to the CCRB (Board Review 05). On April 1, 2016, § 87(2)(b) and § 87(2)(b) provided in-person statements to the CCRB (Board Reviews 06 and 07). On April 11, 2016, § 87(2)(b) provided additional information to the CCRB (Board Review 08) and § 87(2)(b) the 911 caller, provided a phone statement to the CCRB (Board Review 12). On April 26, 2016, § 87(2)(b) provided a statement to the CCRB (Board Review 13). On May 10, 2016, Sergeant Coyle provided a statement to the CCRB (Board Review 09). On May 11, 2016, Sergeant Fontana provided a statement to the CCRB (Board Review 10).

It is undisputed that officers under the supervision of Sergeant Fontana entered and searched § 87(2)(b) § 87(2)(b) in Manhattan without a warrant after they received a 911 call regarding multiple men fighting inside of the apartment. According to event #§ 87(2)(b), the 911 caller stated that four to five males were fighting inside of the location. He stated that there were unknown weapons but that they are known to sell drugs at the location and that the police should use caution when responding (Board Review 14). It is also undisputed that the officers ultimately found § 87(2)(b) hiding under a bed in the apartment and transported him to the hospital due to him being under the influence of cocaine and that the officers left the location after searching the apartment for any additional occupants.

§ 87(2)(b) and § 87(2)(b) stated that no one had been fighting inside of the apartment and that they had been hanging out listening to music with their roommate and two friends. They stated that they did not give the officers permission to search their apartment and only opened the door because the officers promised not to search and threatened to call the “swat team” to break down the door.

Video footage revealed that, prior to entering, officers told the occupants of the apartment multiple times that they were only there to make sure that no one was hurt and that everyone was okay.



201602246_20160520_1358_DM.mp4

Officers may enter and search a location without a warrant under the emergency doctrine exception if (1) they have reasonable suspicion to believe that there is an immediate need for their assistance to protect life or property, (2) the search is not motivated primarily by the intent to arrest and seize evidence, and (3) if there is reasonable basis to associate the emergency with the area to be searched. People v. Dallas, 8 N.Y.3d 890, 891 (2007) (Board Review 11).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **allegation A** be **exonerated**.

Allegation B- Discourtesy: Sergeant Vincent Fontana spoke discourteously to § 87(2)(b)

Allegation C- Offensive Language: Sergeant Vincent Fontana make remarks to
§ 87(2)(b) **based upon ethnicity.**

It is undisputed that, after § 87(2)(b) and their friend § 87(2)(b) stepped into the hallway and officers entered their apartment, officers found § 87(2)(b) hiding underneath a bed in one of the bedrooms.

§ 87(2)(b) alleged that after the officers found § 87(2)(b) Sergeant Fontana stated, "He's gonna lie to me and he's not going to tell me that there's a motherfucking nigger in here nigga."

§ 87(2)(b) did not make this allegation during his in-person statement. In a follow-up phone call, when § 87(2)(b) was asked whether any of the officers said anything offensive or discourteous to any of them, § 87(2)(b) alleged that towards the end of the incident, while an officer was taking his information outside of the building in regards to his broken bed, an officer said, "You're gonna tell me this nigga didn't know that he was in here?" § 87(2)(b) stated that the statement should be captured in one of the videos. He did not recall officers use any profanity, offensive or discourteous language aside from this.

§ 87(2)(b) stated that after the officers found § 87(2)(b) Sergeant Fontana called § 87(2)(b) a "nigger." § 87(2)(b) did not recall the officer's exact words but stated that he said something to the effect of "Do you think I'm stupid?" when he called § 87(2)(b) a "nigger." § 87(2)(b) did not hear any of the officers make any other discourteous allegations aside from this.



201602246_20160518_1443_DM.mp4



201602246_20160518_1441_DM.mp4

As seen above, the moments described by § 87(2)(b) and § 87(2)(b) were caught on camera. While the conversations within which they variously alleged that the discourteous and offensive statements were made are captured in the videos, none of the officers in the videos make the alleged statements or use the words “motherfucker” or “nigger” at any of these points in the videos. Furthermore, while they all made similar allegations, the allegations made by § 87(2)(b) occurred at a very different point in the incident than the allegations made by § 87(2)(b) and § 87(2)(b) and none of them alleged that an officer made a similar statement at any other time during the incident.

Sergeant Fontana denied making the alleged statements.

§ 87(2)(g)

It is therefore recommended that **allegations B and C** be **unfounded**.

Allegation D- Abuse of Authority: Sergeant Vincent Fontana forcibly removed § 87(2)(b) to a hospital.

As seen in the video footage below, it is undisputed that § 87(2)(b) informed the officers that he was under the influence of cocaine and paranoid prior to being removed to the hospital. An AIDED was prepared documenting this (Board Review 15).



201602246_20160518_1406_DM.mp4

According to Patrol Guide Procedure 216-05, when a uniformed member of the service reasonably believes that a person is apparently emotionally disturbed, that person must be taken into protective custody when the person is conducting himself in a manner likely to result in a serious injury to himself or others (Board Review 11).

§ 87(2)(g)

It is therefore recommended that **allegation D** be **exonerated**.

Squad: 2

Investigator:	_____	_____	_____
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date